

Hoa Survival Guide — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

GATHER YOUR DOCUMENTS

- ☐ **Gather Your CC&Rs:** Obtain your Covenants, Conditions & Restrictions from your home purchase documents, your HOA management company, or the county recorder's office because CC&Rs are recorded on your property deed and represent the highest-authority rules governing your HOA.
- ☐ **Read Your Bylaws:** Locate and study your HOA's bylaws to understand how board members are elected, how long their terms are, and how meetings and quorums are structured because bylaws determine who has power and how they can be removed.
- ☐ **Review Rules and Regulations:** Examine the day-to-day operational rules covering lawn maintenance, parking, pets, and noise because boards can change these rules without homeowner approval, making them the fastest way enforcement can shift.
- ☐ **Check Meeting Minutes:** Request and review the last three years of HOA meeting minutes to identify patterns in rule changes, enforcement actions, and board member attendance because historical documentation reveals how the board culture has evolved.

PROTECT YOUR RIGHTS

- ☐ **Document Enforcement Actions:** Keep detailed records of every enforcement action including dates, what was alleged, and which document sections the HOA cited because boards that invent enforcement policies without legal backing may be violating their own procedures.
- ☐ **Verify Document Citations:** Ask your HOA to point to the exact document section supporting each rule they enforce because rules without citation to your CC&Rs, Bylaws, or state law may not be legally enforceable.
- ☐ **Review State HOA Statutes:** Research your state's HOA laws to identify which board-enacted rules contradict state statute and cannot be enforced regardless of what your local Rules & Regulations state.
- ☐ **Know What Boards Cannot Do:** Understand that HOAs cannot enter your home without permission, fine you without proper notice and hearing, or enforce rules retroactively against conditions that existed when you bought your home.

CHANGE YOUR SITUATION

- ☐ **Vote in Board Elections:** Participate in every HOA board election because low voter turnout means your vote has outsized impact and elections can be won with just a few committed homeowners showing up.
 - ☐ **Run for the Board:** Consider running for the HOA board yourself to directly influence rule changes and enforcement priorities, especially if your community has no one running against long-entrenched members.
 - ☐ **Compare Rules to Documents:** Review all current HOA rules against your original CC&Rs to identify which rules were added without proper authority or exceed what the governing documents actually permit.
 - ☐ **Assess Your Exit Options:** If staying and fighting isn't viable, research how to sell your home strategically while highlighting neighborhood strengths and minimizing how strict HOA rules affect buyer interest.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.